
2:00 PM LINE 2

20-CIV-01712 SAMANTHA LIAPES VS FACEBOOK, INC.

SAMANTHA LIAPES
FACEBOOK, INC.

JAHAN C. SAGAFI
CHRISTOPHER CHORBA

VERIFIED APPLICATION OF MICHAEL C. DANNA TO APPEAR AS COUNSEL PRO HAC VICE

TENTATIVE RULING:

The pro hac vice application filed by Michael C. Danna is **GRANTED**.

2:00 PM LINE 3

22-CIV-03763

ETZEL WILLIAMS, III, ET AL VS. PENINSULA CORRIDOR JOINT POWERS BOARD, ET AL

ETZEL WILLIAMS
PENINSULA CORRIDOR JOINT POWERS BOARD

JESSICA DANIELSKI
DALE L. ALLEN

DEFENDANT CITY OF BURLINGAME'S MOTION TO TAX COSTS

TENTATIVE RULING:

Defendant City of Burlingame moves to tax over \$111,416.47 of the \$164,932.48 costs sought by plaintiffs Etzel Williams III and Desjaunae Williams in connection with the trial of the action for dangerous condition of public property relating to the death of their mother, Cynthia Robinson, at railroad crossing in the City of Burlingame. Defendant's motion is **GRANTED in part**.

Plaintiffs are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A. Background

The trial was bifurcated, with liability tried first. On August 22, 2025, the jury returned a verdict finding the City's property was in a dangerous condition that caused Ms. Robinson's death, apportioning 25% fault to the City and 75% to Ms. Robinson. On August 25, 2025, the court granted the City's motion for directed verdict as to plaintiffs Darryl Williams and Taniesha Williams because they had not met their burden of proving damages. The jury returned a damages verdict of \$4,000,000, which was reduced by the jury's finding of Ms. Robinson's 75% comparative fault, for a total judgment of \$1,000,000, in favor of Etzel Williams III and Desjaunae Williams apportioned equally between them.

Plaintiffs filed their Memorandum of Costs on October 23, 2025, seeking a total of \$164,932.48 in costs. The City moved to tax costs on March 26, 2026.

The City argues that it is a prevailing party as to Darryl Williams and Taniesha Williams because they did not recover any damages.

Plaintiffs argue that they are the prevailing party because they received a net monetary recovery, that is, the judgment in favor of Etzel Williams III and Desjaunae Williams.
